



CHAPTER lxiv.

An Act to define and sanction the existing water under-
taking of the urban district council of Ivybridge in the
county of Devon to authorise the construction of new
works and for other purposes. [7th August 1912.]

A.D. 1912.

WHEREAS the urban district of Ivybridge in the county
of Devon is under the jurisdiction of the Ivybridge
Urban District Council :

And whereas the sewer authority for the said district of
Ivybridge acquired in the year 1872 certain interests in lands
and waters and have constructed certain waterworks which are
herein-after described :

And whereas the Council as the successors of the said
sewer authority now have the control and management of the
water undertaking and it is expedient that the Council should
be empowered to maintain and continue the said works with
the powers and subject to the provisions and restrictions in this
Act contained and should also be empowered to acquire certain
lands now occupied and used by the Council for or in respect
of their said works :

And whereas the water supplied by the Council by means
of the said works is derived from the River Erme and it is
expedient that the Council should be empowered to continue to
take the water of the said river and to supply such water
within the limits of supply defined by this Act until the
Council are in a position to supply water by means of the
additional works described in this Act :

And whereas the existing source of supply and works are
or will shortly prove to be inadequate to meet the growing
requirements of the population of the district :

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

And whereas it would be of local and public advantage if the Council were empowered to obtain a supply of water from the stream in the parish of Harford known as the Butter Brook and for that purpose to construct the additional works described in this Act and to acquire lands waters and easements :

And whereas the moneys borrowed for and in respect of the existing works have long since been repaid :

And whereas estimates have been prepared showing the total amount which will or may be required for the purchase of land and for the execution of the works by this Act authorised and such estimates amount to the sum of eight thousand and one hundred pounds :

And whereas the works authorised by this Act are permanent works and it is expedient that the repayment of the cost thereof should be spread over a period of years :

And whereas it is expedient that the other provisions of this Act should be made :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-seventh day of November one thousand nine hundred and eleven after ten clear days' notice by public advertisement of the meeting and of the purpose thereof in the *Western Daily Mercury* being a local newspaper circulating in the district (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the eighth day of January one thousand nine hundred and twelve being not less than fourteen days after the deposit in Parliament of the Bill for this Act :

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed :

And whereas the purposes of this Act cannot be effected without the authority of Parliament: A D. 1912.

And whereas plans and sections describing the lines situation and levels of the works authorised by this Act and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands were duly deposited with the clerk of the peace for the county of Devon and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Ivybridge Urban District Water Act 1912. Short title.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” in section 44 of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts:

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Interpreta-
tion.

3. In this Act unless the subject or context otherwise require—

Words and expressions to which meanings are assigned by enactments incorporated with this Act have the same respective meanings and for the purposes of this Act in the enactments herewith incorporated “the undertakers” “the promoters of the undertaking” and “the company” mean respectively the Council and “the railway” and “the work” mean respectively the works authorised by this Act;

“The district” means the urban district of Ivybridge;

“The Council” means the urban district council of the district;

“The clerk” means the clerk to the Council;

“The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district;

“The water undertaking” means the water undertaking of the Council as constituted and authorised by this Act;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rent-charges or securities transferable by delivery or any securities of the Council.

PART II.

AS TO EXISTING WORKS.

Confirmation
of existing
works.

4. The construction and use of the existing waterworks of the Council together with all the incidental and ancillary pipes works and apparatus now connected with all or any of such works is hereby confirmed and subject to the provisions of this Act the Council may maintain and continue such works or any works substituted therefor or any part thereof respectively

The said works (herein-after collectively referred to as "the existing works") are situate in the parish of Ivybridge and county of Devon and are as follows:— A.D. 1912.

- (A) The reservoir being the enclosure numbered 10 on the $\frac{1}{2500}$ Ordnance map of the said parish (2nd edition 1906 Devonshire sheet number CXXV. 2):
- (B) The intake on the River Erme situate in the enclosure numbered 3 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1905 Devonshire sheet CXIX. 14):
- (c) The supply pipe commencing at the said intake and terminating in the said reservoir:
- (D) The line of pipes commencing in the said reservoir and terminating in the public road at a point 1.5 chains or thereabouts south of the viaduct carrying the Great Western Railway over that road.

PART III.

NEW WORKS.

5. Subject to the provisions of this Act the Council may in the county of Devon and in the lines and situation and upon the lands shown on the deposited plans and described in the deposited book of reference make and maintain the following works shown on the deposited plans and sections (herein-after referred to with the subsidiary works connected therewith as "the new works") (that is to say):— Power to make new works.

Work No. 1 A reservoir to be known as "the Butter Brook Reservoir" to be formed by means of a dam or embankment across the Butter Brook at a point 10 chains or thereabouts measured in an easterly direction from the south-eastern corner of the field or enclosure numbered 233 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1906 Devonshire sheet No. CXIX. 11) and 18 chains or thereabouts measured in a south-easterly direction from Harford Moor Gate:

Work No. 2 An aqueduct or line or lines of pipes commencing at or in the said reservoir (Work No. 1) and terminating at a point 2 chains or thereabouts measured in a westerly direction from the northernmost corner or the field or enclosure numbered 42 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1906 Devonshire sheet CXXV. 3):

A.D. 1912.

Work No. 3 An aqueduct or line or lines of pipes commencing at the termination of Work No. 2 herein-before described and terminating by a junction with the existing line of pipes of the Council at a point 8 chains or thereabouts measured in a southerly direction from the eastern corner of the existing reservoir of the Council:

Work No. 4 An approach road commencing at the north-westerly end of the said intended dam or embankment at a point 9 chains or thereabouts measured in an easterly direction from the south-eastern corner of the field or enclosure numbered 233 on the $\frac{1}{2500}$ Ordnance map (2nd edition 1906 Devonshire sheet CXIX. 11) and terminating by a junction with the road known as Harford Lane at or near Harford Moor Gate across the said road.

Power to deviate.

6. In the construction of the new works the Council may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding in the case of the reservoir three feet upwards and seven feet downwards and in the case of other works three feet upwards and to any extent downwards Provided as follows (that is to say):—

The Council shall not construct any embankment or wall of such reservoir of a greater height above the surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition:

Except for the purpose of crossing over a stream no part of the pipes shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

PART IV.

PROVISIONS COMMON TO EXISTING AND TO NEW WORKS.

Power to make subsidiary works.

7. In addition to the existing works and to the new works the Council may upon the lands shown on the deposited plans make and maintain all such cuts channels catchwaters tunnels

adits pipes conduits culverts drains sluices bye-washes shafts A.D. 1912.
wells bores water towers overflows waste water channels gauges
valves filters filter beds tanks banks walls bridges embankments
piers approaches engines machinery and appliances as may be
necessary or convenient in connexion with or subsidiary to the
existing works or the new works or any of them or for taking
collecting impounding and distributing the waters which the
Council may take under the powers of this Act but nothing
in this section shall exonerate the Council from any action
indictment or other proceeding for nuisance in the event of any
nuisance being caused or permitted by them.

8. The existing works and the new works and the powers Water under-
by this Act conferred upon the Council with respect to water- taking.
works and water supply shall constitute and be the water
undertaking.

9.--(1) For the purpose of constructing enlarging extending Temporary
repairing cleansing or examining any of the works authorised discharge of
by this Act the Council may cause the water in any such work water into
to be discharged temporarily into any available stream or streams.
watercourse.

(2) In the exercise of the power conferred by this section
the Council shall do as little damage as may be and shall pay
compensation to all persons for all damage sustained by them
by the exercise of such power the amount of compensation to
be settled in default of agreement by arbitration in accordance
with the provisions of the Arbitration Act 1889.

10. For the protection of the Great Western Railway Com- For protec-
pany (herein-after referred to as "the Great Western Company") tion of Great
the following provisions shall unless otherwise agreed in writing Western
between the Great Western Company and the Council apply:— Railway
Company.

(A) Nothing contained in this Act or any enactment incor-
porated therewith shall enable the Council except by
agreement with the Great Western Company to lay
down communication pipes or other works in under
or across any road or approach the property of the
Great Western Company and not being a highway or
dedicated to public use:

(B) In laying down altering improving enlarging extending
maintaining or renewing or in executing or effecting

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence (if given) and to the reasonable satisfaction of the principal engineer of the Great Western Company and except in cases of emergency according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing Provided that if the said engineer shall not express his disapproval of such plans within twenty-eight days after the same shall have been submitted to him he shall be deemed to have approved thereof:

(c) All such works shall be done by and at the expense of the Council except as in this section otherwise provided and the Council shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Council Provided always that should the Great Western Company elect to do so where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the cost of the Council but so nevertheless that any mains or pipes so laid by the Great Western Company shall be laid under the superintendence (if given) and to the reasonable satisfaction of the engineer of the Council and in accordance with plans to be previously submitted by the Council for the reasonable approval of the engineer of the Great Western Company:

(d) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways

bridges level crossings approaches viaducts stations
works lands or property and so as to cause no inter-
ruption to the passage or conduct of traffic over
such railways or at to or from any station thereon: A.D. 1912.

- (E) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Council shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:
- (F) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon or across over or under which any of the works of the Council may have been constructed or laid the Great Western Company may on giving to the Council fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency after giving the longest notice possible divert support or carry the said works of the Council across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works Provided that any works executed by the Great Western Company under this subsection shall be executed under the superintendence (if given) and to the reasonable satisfaction of the engineer of the Council and that the Great Western Company shall not interrupt or interfere with the supply of water by the Council:

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

- (g) Any dispute or difference which may arise between the Great Western Company and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Council or either of them.

For protec-
tion of
Plympton
St. Mary
Rural Dis-
trict Council.

11. In executing the works and exercising the powers by this Act authorised so far as they affect the roads highways bridges and culverts in the rural district of Plympton St. Mary vested in or under the control of the Plympton St. Mary Rural District Council (in this section called "the rural council") the following provisions for the protection of the rural council shall unless otherwise agreed in writing between the rural council and the Council apply and have effect (that is to say):—

- (1) All aqueducts or lines of pipes (other than service pipes) to be laid in or along any such road or highway shall be laid in such position in or at the side of the road as the rural council under the hand of their surveyor shall reasonably direct and so far as practicable shall not be laid so that any part thereof shall be within two feet six inches of the surface of the ground and shall not without the consent of the rural council (which consent shall not be unreasonably withheld) be constructed or laid so as to interfere with the structural part of any such bridge:

- (2) The plan required by section 31 of the Waterworks Clauses Act 1847 shall clearly indicate the position in which and the depth at which any proposed works of the Council are intended to be laid and the provisions of section 30 of the said Act shall for the purposes of this Act be read and construed as if "seven days" were substituted for "three days" therein:

- (3) If the rural council at any time hereafter alter the level of or divert any such road or highway in or along which the Council shall under the powers of this

Act have laid down any aqueduct or line of pipes or executed any works and such alteration or diversion shall render reasonably necessary the alteration of any such aqueduct line of pipes or works the Council shall at the expense of the rural council so soon as practicable after receiving notice in writing under the hand of the clerk or surveyor of the rural council alter the position of any such aqueduct line of pipes or works in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner herein-after prescribed Provided that before and during any such alteration or diversion of any such road or highway as aforesaid the rural council shall afford all reasonable facilities for temporarily carrying or supporting any such aqueduct line of pipes or works so as not to interrupt the continuous supply of water: A.D. 1912.

- (4) Any works carried out by the Council under this Act shall be so executed as not to stop and to impede or interfere as little as may be with the traffic on any such road or highway:
- (5) If any difference shall arise between the Council and the rural council under the provisions of this section such difference shall be settled by arbitration by an engineer to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party after notice to the other and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such arbitration.

PART V.

LANDS AND WATER.

12. Subject to the provisions of this Act the Council may enter upon take hold and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference or any estate or interest therein not now belonging to the Council which may be required for or in connexion with the continuance renewal maintenance and use of the existing works or for or in connexion with the new works. Power to take lands.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Period for
compulsory
purchase of
lands.

Correction of
errors &c. in
deposited
plans and
book of
reference.

13. The powers of the Council for compulsory purchase of land for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

14. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after given ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Devon for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for such county and a duplicate thereof shall also be deposited with the clerks of the councils of the districts or parishes in which the lands affected are situate and such certificate and duplicate respectively shall be kept by such clerk of the peace and clerks of the councils respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Confirmation
of purchase
of lands.

15. The acquisition holding and user by the Council of any estate or easement in over or affecting the lands now held or used by the Council for the purpose of or in connexion with the existing works or any of them is hereby confirmed and the Council may hold and use the same for the general purposes of the water undertaking but the Council shall not create or permit a nuisance on any of such lands For the purposes of section 3 of the Housing of the Working Classes Act 1903 the said lands shall be deemed to have been acquired under the powers of this section.

Council may
acquire ease-
ments only
in certain
cases.

16.—(1) The Council may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands

Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of such Acts. A.D. 1912.

(2) As regards any lands in respect of which the Council have acquired easements only under the provisions of this section the Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works and subject to such easements have the same rights of passing over such lands for all purposes of or connected with the use and enjoyment of the adjoining lands as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Council to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Council to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement only shall be endorsed with notice of this provision.

17. Notwithstanding anything in this Act contained the Council shall not acquire under the authority of this Act any greater quantity of common or commonable land than as stated in the following table (that is to say):— Limited quantity of commonable land to be acquired.

Purposes for which land required.	Name by which land is known.	Parish in which land is situate.	Quantity to be taken.
Work No. 1 - - } Work No. 2 (part of) - } Work No. 4 - - }	Harford Moor -	Harford -	8 acres. Easement only. Easement only.

18. The Council in addition to any lands which they are by this Act authorised to acquire may by agreement purchase take on lease acquire and hold for the purposes of the water undertaking any lands and any easements or rights (except easements or rights of water in which persons other than the grantors have an interest) over or in respect of lands which the Council may deem necessary for their purposes Provided that the Council shall not under the powers of this section acquire more than five acres of land and shall not create or permit the Power to purchase additional lands by agreement.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. — creation of any nuisance on such lands nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be required for or used in connexion with the water undertaking.

Persons
under dis-
ability may
grant ease-
ments &c.

19. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
retain sell
&c. lands &c.

20. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such times as they may think fit and may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands acquired by them under this Act or any interest therein and may sell exchange or dispose of any of the rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease or other disposition and on any exchange may give or take any money for equality of exchange.

Reservation
of water
rights &c.
on sale.

21. The Council on selling any lands acquired by them in connexion with the water undertaking and not required for that purpose may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

22. The Council shall apply all moneys received by them in respect of any sale exchange or disposition of lands and premises by this Act authorised to be acquired or by way of fine or premium on any lease of any such lands and any other moneys received on capital account under this Act in or towards paying off moneys borrowed and for the time being owing under this Act or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council. Provided that such proceeds when used to pay off the borrowed moneys shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

A.D. 1912.
 Application
 of moneys
 from sale &c.
 of land.

23. Subject to the provisions of this Act the Council may collect impound take use divert and appropriate for the purposes of their waterworks (1) by means of the existing works the waters of the River Erme and all such springs streams and waters as may be intercepted by the existing works and (2) by means of the new works all such springs streams and waters as may be intercepted by the new works and particularly the waters of the stream known as the Butter Brook and all the tributaries and springs of that stream at and above the point where the dam of the reservoir (Work No. 1) authorised by this Act crosses the said stream. Provided that the Council shall not without the consent in writing of John Allen and Sons (Ivybridge) Limited take water from the River Erme by means of the existing works except subject to and in accordance with the provisions of an indenture dated the fifth day of February one thousand eight hundred and seventy-eight and made between the urban sanitary authority for the district of Ivybridge of the one part and Edward Allen and John Allen of the other part. Provided also that from and after the time when the Council are in a position to supply water by means of the new works the power conferred upon the Council by this Act to take the waters of the River Erme shall cease and determine.

Power to
 take waters.

24.—(1) Until the date of the completion of the reservoir (Work No. 1) by this Act authorised the Council may take

As to com-
 pensation
 water.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. from the stream known as the Butter Brook any water they may require subject to the following restrictions:—

(A) They shall place a gauge weir across the said brook at or near the point of abstraction over or through which one hundred and seventy thousand gallons of water shall be allowed to pass and flow down the said brook every day of twenty-four hours if and so long as the said brook shall during the said twenty-four hours yield such quantity of water:

(B) On any such day during such time as the flow of water in the said brook shall be less than at the rate of one hundred and seventy thousand gallons per day of twenty-four hours the Council shall not be entitled to draw any water therefrom but during such time as the flow is in excess of such rate the Council may take all or such part of the excess as they may require.

(2) After the said reservoir is completed the following provisions shall apply:—

(A) The Council shall during every day of twenty-four hours discharge or deliver into the Butter Brook at a point therein situate not more than two hundred yards below the foot of the dam or embankment of the reservoir not less than one hundred and seventy thousand gallons of water in a regular uniform and continuous flow:

(B) For the purpose of measuring the quantity of water to be so discharged or delivered into the Butter Brook by the Council under this subsection the Council shall erect and maintain at a point on the said brook below the said reservoir not more than two hundred yards from the foot of the dam or embankment thereof a proper and suitable measuring gauge over or through which the said compensation water shall flow and the same shall be open to the inspection and examination of the Avon and Erme Fishery District Board of Conservators and of all persons interested therein.

(3) In case of any neglect on the part of the Council to maintain any gauge in a state of efficiency and in case of any

other neglect by or in consequence of which the said quantity of compensation water shall not so flow the Council shall for every day on which such neglect occurs forfeit and pay to each of the persons affected thereby including the said Fishery District Board of Conservators (who may sue for and recover the same) the sum of five pounds and shall in addition make compensation for any loss damage or injury sustained by such persons or any of them. A.D. 1912.

(4) If any difference arises between the Council and the said Fishery District Board of Conservators or any person so interested with respect to the construction or use of any gauge or the state of repair or condition thereof such difference shall be referred to the arbitration of an engineer to be nominated (unless otherwise agreed) on the application of either of them by the President of the Institution of Civil Engineers.

(5) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Council can divert collect impound or appropriate by means of the works by this Act authorised except in respect of any lands situate between the foot of the said dam or embankment and the said point of discharge of water into the brook.

25. The Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands on which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of Council to abstract water.

26. The Council may make and carry into effect agreements with the owners lessees or occupiers of any lands in or over which any waters which the Council are for the time being authorised to collect impound take use divert or appropriate arise or flow with reference to the execution by the Council or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting and conveying and preserving the purity of the waters which the Council are for the time being authorised to take. Power to agree as to drainage of lands &c.

27. The Council may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall Power to hold lands for protection of works from pollution.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts but the Council shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

As to fish
passes.

28. The Council shall not be required to make and maintain or attach and maintain attached to the dam of the reservoir (Work No. 1) by this Act authorised any fish pass.

Limits of
fishery dis-
trict not
altered.

29. Nothing in this Act shall be deemed to alter the limits of the River Erme or of any fishery district including the said river as defined by certificate under the provisions of the Salmon and Freshwater Fisheries Acts 1861 to 1892 or any Act amending the same.

Scheduled
agreement
confirmed.

30. The agreement made the fifteenth day of April one thousand nine hundred and twelve between Captain Thomas Archer Julian of the one part and the Council of the other part set forth in the schedule to this Act is hereby confirmed and made binding upon the parties thereto.

Supply to
Broomhill
Estate.

31. For the protection of Captain Thomas Archer Julian or other the owner in possession for the time being of the Broomhill Estate (in this section called "the owner") the following provisions shall subject to the provisions of this Act and except so far as may be otherwise agreed between the Plympton St. Mary Rural District Council (in this section called "the rural council") and the owner apply and have effect (that is to say):—

(1) The rural council shall at all times at the request of the owner afford a supply of pure water for domestic purposes to any one or more of the farm or other houses (other than Broomhill House) for the time being on the Broomhill Estate under the regulations and byelaws for the time being in force in the district of the rural council and at rates not higher than those for the time being in force generally in the district of the Council:

(2) The Council shall supply to the rural council (in addition to any water to be provided under subsection (1) (A) of the section of this Act of which

the marginal note is "Supply of water to Plympton St. Mary Council") such quantity of pure water as may from time to time be required by the rural council to enable them to comply with their obligations under this section: A.D. 1912.

- (3) The price to be paid to the Council by the rural council for such supply shall be the amount payable at the rates aforesaid to the rural council less seven and a half per centum of such amount:
- (4) The rural council shall take all reasonable steps to see that the before-mentioned regulations and byelaws are duly observed:
- (5) In case the level of any house on the Broomhill Estate will not permit water to be supplied thereto by the rural council by gravitation from or the pressure available in the main at the point on the main nearest to such house the rural council shall afford a supply for such house into a tank to be provided by the owner at some convenient spot to be selected by the owner which can be supplied by such gravitation or pressure as aforesaid:
- (6) All mains pipes and apparatus necessary for giving any such supply to the Broomhill Estate shall be provided laid down and maintained by and at the expense of the owner and to the reasonable satisfaction of the rural council:
- (7) For the purposes of this section the expression "the Broomhill Estate" means the lands edged with a pink line on the plan annexed to the agreement set forth in the schedule to this Act.

32. For the supply of water (other than the supply to be provided under the section of this Act of which the marginal note is "Supply to Broomhill Estate") to the Plympton St. Mary Rural District Council (in this section referred to as "the rural council") the following provisions shall unless otherwise agreed in writing between the rural council and the Council have effect (that is to say):—

Supply of
water to
Plympton
St. Mary
Council.

- (1) The Council shall if and when requested by three months' notice in writing by the rural council and unless

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

prevented by frost unusual drought or other unavoidable cause or accident—

(A) Allow the rural council to take a supply of water not exceeding ten thousand gallons in any one day of twenty-four hours at such point or points within the parish of Harford on the aqueduct (Work No. 2) by this Act authorised as may be agreed upon or failing agreement determined by arbitration and at such pressure as may exist in the main at the point or points of abstraction for use within the parish of Harford and the Council shall give to the rural council all reasonable facilities to enable the necessary connexion to be made at the expense of the rural council and subject to the reasonable approval of the Council;

(B) Supply to the rural council in bulk and at such pressure as may exist in the mains at the point or points of delivery such quantity of water not exceeding twelve thousand gallons in any one day of twenty-four hours for use within the parish of Ermington as the rural council may from time to time require:

Provided that no such supply shall be given for use within the parish of Ermington if and so long as the same would interfere with the supply of water for domestic purposes within the limits of supply or with any supply which the Council may for the time being be under obligation to give under the sections of this Act of which the marginal notes are "Scheduled agreement confirmed" and "Supply to Broomhill Estate" respectively or under subsection (1) (A) of this section:

(2) Any supply of water to which the rural council are entitled under this section for use within the parish of Ermington shall be delivered by the Council to the rural council at or near the boundary of the district at points (A) in the main road leading from Ivybridge to Plymouth and (B) in the main road leading from Ivybridge to Ermington:

- (3) If any supply of water under this section for use within the parish of Ermington shall involve any extension or enlargement of the mains of the Council the rural council shall make to the Council in respect of such supply a minimum payment of five pounds per quarter irrespective of the quantity of water taken : A.D. 1912.
- (4) The price to be paid by the rural council to the Council shall be at the rate of seven pence per one thousand gallons for all water taken by or supplied to the rural council under this section and the amount so payable shall be paid by the rural council in quarterly instalments within one month after the receipt from the Council of an account showing the quantity of water taken and the amount payable in respect thereof by the rural council :
- (5) All water taken by or supplied to the rural council under this section shall be measured by a suitable meter or meters to be fixed and maintained by the Council at or near the point or points of abstraction or delivery and the Council shall whenever so requested by the rural council afford to the rural council all reasonable facilities for inspecting and testing any such meter or meters and taking copies of the records thereof The rural council shall pay to the Council a yearly sum equivalent to ten per centum per annum upon the actual capital cost of providing and fixing any such meter or meters such payment to be made in quarterly instalments on the usual quarter days :
- (6) If any difference shall arise between the Council and the rural council touching this section such difference shall be determined by arbitration by an engineer or other fit person to be agreed on or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

33.—(1) (A) Notwithstanding anything in this Act contained within six months after the date of the completion of the reservoir (Work No. 1) by this Act authorised or from and

For pro-
tection of
John Allen
and Sons

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. after such earlier date as the Council may be in a position
(Ivybridge) to supply water by means of the new works the Council shall
Limited. supply to John Allen and Sons (Ivybridge) Limited (in this
section called "the company") free of charge but during such
time only as the Council may be supplying water for trade
purposes within the limits of supply such quantity of water
as the company may require not exceeding in the whole two
hundred thousand gallons in any one year ending the thirty-first
day of December and of which quantity the Council shall not
be bound to supply more than ten thousand gallons in any
one day of twenty-four hours The quantity of water so to be
supplied shall in the first year in which the same is supplied
be if necessary a proportionate quantity:

(B) For the purpose of taking any supply of water to be
given by the Council to the company under this subsection the
necessary connexion with the main of the Council shall be made
by and at the expense of the company and under the superin-
tendence and subject to the reasonable approval of the Council
and at such point on the main opposite the entrance to the
Stowford Paper Mills as may be agreed upon between the
Council and the company or as failing such agreement may be
determined by arbitration under this section:

(c) The supply shall be measured by a meter or other
apparatus to be fixed and maintained by the Council at the point
where the supply is given and the company shall pay to the
Council an annual rent for such meter or apparatus not exceeding
the rate of ten per centum upon the cost thereof.

(2) Any further or other water supplied by the Council to
the company for trade purposes shall be supplied by the Council
by measure subject to the provisions of this Act and the price
to be charged by the Council for any water so supplied shall
not exceed the price for the time being in force within the
district for a supply of water by measure for trade purposes.

(3) In the event of any question or difference arising between
the Council and the company under the provisions of this section
the same shall be referred to the arbitration of an engineer or
other fit person to be appointed unless otherwise agreed by the
Local Government Board and subject as aforesaid the provisions
of the Arbitration Act 1889 shall apply to any such reference.

(4) The provisions of this section shall not prejudice or affect A.D. 1912.
but shall be in addition to any other provisions of this Act which
enure for the benefit of the company.

PART VI.

SUPPLY OF WATER.

34. The limits of this Act for the supply of water (in this Limits of
Act referred to as "the limits of supply") shall be the district. supply.

35. The Council shall at the request of the owner or Rates for
occupier of any dwelling-house or part of a dwelling-house supply of
entitled under the provisions of this Act to demand a supply water for do-
of water for domestic purposes furnish to such owner or occupier mestic pur-
a sufficient supply of water for such domestic purposes at rates poses.
not exceeding the rates per annum herein-after specified (that
is to say):—

Where the rateable value of the premises so supplied with
water does not exceed five pounds the sum of eight
shillings and eight pence:

Where such rateable value exceeds five pounds at the rate
of ten pounds per centum per annum upon such rateable
value.

The rateable value of any such dwelling-house or part of a
dwelling-house shall be ascertained by the valuation list in force
at the commencement of the quarter for which the rate accrues
or if there is no such list in force by the last rate made for
the relief of the poor. Provided that where the water rate is
chargeable on the rateable value of a part only of any dwelling-
house entered in the valuation list such rateable value shall be
a fairly apportioned part of the rateable value of the whole
tenement ascertained as aforesaid the apportionment in case of
dispute to be ascertained and fixed by a court of summary
jurisdiction.

In addition to the foregoing charges the Council may charge
in respect of every watercloset beyond the first (for which no
additional charge shall be made) on any premises within the
limits of supply a sum not exceeding five shillings per annum
and for every fixed bath capable of containing not more than

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 Geo. 5.]
Act, 1912.

A.D. 1912. fifty gallons a sum not exceeding seven shillings and six pence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Council may think fit such additional sum to be paid and to be recoverable in all respects with and as the water rate.

Rates payable by owners of small houses.

36. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Council so determine pay the rate for the supply but the rate may be recovered by the Council from the occupier and if so recovered may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Council not bound to supply several houses by one pipe.

37. The Council shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Notice of discontinuance.

38. A notice to the Council from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council.

Prevention of plumbism.

39. All water supplied by the Council under this Act shall be properly and efficiently filtered or otherwise treated so as to prevent it acting on lead in such manner as to endanger the health of consumers and if the Council make default under this section they shall be liable to a penalty not exceeding five pounds for every day during which such default shall continue.

Byelaws for preventing waste &c. of water.

40.—(1) The Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature material workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings")

to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination. A.D. 1912.

(2) Such byelaws shall apply only in the case of premises to which the Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made.

(3) In case of failure of any persons to observe such byelaws as are for the time being in force the Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Council as the water rates in respect of the premises are recoverable.

41.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 the Council may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Council and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus. Detection of waste.

(2) Provided that the Council shall not interfere with any electric lines wires or apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

42. The Council may supply water for other than domestic purposes on such terms and conditions as the Council think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. Supply by measure.

A.D. 1912.

Supply to
houses
partly used
for trade &c.

43. The Council shall not be bound to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required.

Price of
supply by
measure.

44. The price to be charged for a supply of water by measure shall not exceed one shilling and six pence per thousand gallons.

Power to sell
or let meters.

45. The Council may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit and the provisions of section 14 of the Waterworks Clauses Act 1863 shall extend to authorise the Council to let for hire any water fittings to any person supplied by them with water.

Notice to
Council of
connecting
or discon-
necting
meters.

46. Before any person connects or disconnects any meter by means of which any of the water of the Council is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Council of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Council and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Injuring
meters &c.

47. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Council shall (without prejudice to any other right or remedy for the protection of the Council) be liable to a fine not exceeding five pounds and the Council may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Council or has fraudulently altered the index to any meter or other instrument for measuring water or

prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Council the Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Council by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings. A.D. 1912.

48.—(1) The Council may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Council in providing such materials and executing such work shall be paid by the person requiring the same. Power to supply fittings &c.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

49. The Council may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the street were a street within the meaning of those Acts. Power to lay pipes in private streets.

A.D. 1912.

Contracts for
supplying
water in
bulk.

50. The Council may enter into and carry into effect agreements with any local authority company or person for the supply of water beyond the limits of supply to any such authority company or person respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

PART VII.

FINANCE.

Power to
borrow.

51.—(1) The Council may independently of any other borrowing power borrow at interest for the following purposes the following sums (that is to say):—

- (A) For the purchase of lands and easements for or in connexion with the existing works and for the purchase of lands and easements for and for the construction of the reservoir and works connected therewith by this Act authorised the sum of six thousand six hundred and eighty pounds;
- (B) For the construction of works by this Act authorised other than the reservoir and works connected therewith the sum of one thousand four hundred and twenty pounds;
- (C) For paying the costs and expenses of this Act as herein-after provided the sum requisite for that purpose;

and with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act or otherwise in relation to the water undertaking.

(2) In order to secure the payment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge the revenue of their water undertaking and if they think fit as a collateral security the district fund and general district rate.

A.D. 1912.

52. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Certain regulations of Public Health Act as to borrowing not to apply.

53. The Council may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Mode of raising money.

54. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply mutatis mutandis to mortgages granted under this Act.

Provisions of Public Health Act 1875 as to mortgages to apply.

55. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say):—

Periods for repayment of money borrowed.

As to money borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within sixty years from the date or dates of borrowing the same:

As to money borrowed for the purpose (B) mentioned in the said section within thirty years from the date or dates of borrowing the same:

As to money borrowed for the purpose (C) in the said section mentioned within five years from the passing of this Act:

As to money borrowed with the consent of the Local Government Board within such period as the Board may sanction.

56. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or

Mode of payment off of money borrowed.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year or when the money is repaid by half-yearly instalments within six months of the date of borrowing :

Provided that it shall not be obligatory upon the Council to commence the repayment by sinking fund or otherwise of any moneys borrowed for the purposes (A) mentioned in the section of this Act of which the marginal note is "Power to borrow" until the thirty-first day of March next after the completion of the reservoir (Work No. 1) by this Act authorised or the thirty-first day of March one thousand nine hundred and fifteen whichever shall be the earlier date.

Sinking
fund.

57.—(1) If the Council determine to repay by means of a sinking fund any money borrowed by virtue of this Act such sinking fund shall subject to the provisions of the section of this Act whereof the marginal note is "Mode of payment off of money borrowed" be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the sum for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the sum for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Council being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the sum for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based. A.D. 1912.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the sum for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the sum for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the sum for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the sum for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the sum for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

58. A person lending money to the Council under this Act shall not be bound to inquire as to the observance by the Council of any provisions of this Act or be bound to see to the application or be answerable for any misapplication or non-application of the money lent or of any part thereof.

Council not
to regard
trusts.

59. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

60.—(1) Any mortgagee of the Council by virtue of this A.D. 1912,
Act may enforce the payment of arrears of interest or of principal Appointment
or of principal and interest by the appointment of a receiver of receiver,
The amount of arrears of principal due to such mortgagee or
in the case of a joint application by two or more mortgagees to
such mortgagees collectively to authorise the appointment of a
receiver shall not be less than one-tenth part of the amount for
the time being owing by the Council upon mortgage of the water
undertaking.

(2) The application for the appointment of a receiver shall
be made to the High Court.

61.—(1) The Council shall have power—

Power to
re-borrow.

(A) To borrow for the purpose of paying off any moneys
previously borrowed under this Act which are
intended to be forthwith repaid; or

(B) To borrow in order to replace moneys which during
the previous twelve months have been temporarily
applied from other funds of the Council in repaying
moneys previously borrowed under this Act and
which at the time of such repayment it was intended
to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the
purposes of repayment be deemed to form part of the original
loan and shall be repaid within that portion of the prescribed
period which remains unexpired and the provisions which are
for the time being applicable to the original loan shall apply to
the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the
purpose of making any payment to a sinking fund or of paying
any instalment or making any annual payment which has or
may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order
to replace any moneys previously borrowed which have been
repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the
purpose of the repayment other than moneys borrowed
for that purpose.

A.D. 1912.

Return re-
specting
sinking fund
to Local
Government
Board.

62.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder or at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of

Mandamus to be obtained by the Local Government Board out A.D. 1912.
of the High Court.

63. The Council shall apply all moneys received by them on account of revenue in respect of their water undertaking in manner and in order following (that is to say):— Application
of water
revenue.

First In payment of the working and establishment expenses and cost of maintenance of the water undertaking:

Secondly In payment of the interest on moneys borrowed by the Council for the purposes of the water undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the water undertaking:

Fourthly In extending or improving (if the Council think fit) any works for the purposes of the water undertaking:

Fifthly In providing (if the Council think fit) a reserve fund for the water undertaking by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to two thousand pounds which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from the water undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the water undertaking or for payment of the cost of renewing improving or extending any part of the works forming part thereof and so that if the fund is at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as the reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Council shall carry to the district fund any balance remaining in any year after retaining or setting aside such a sum as may in the opinion of the Council be required for carrying on the water undertaking and paying the current expenses connected therewith and shall also carry to the district fund the

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912. annual proceeds of the reserve fund when such fund amounts to two thousand pounds.

As to deficiency in receipts.

64. Any deficiency in the revenue and receipts of the Council in respect of the water undertaking to meet any of the payments first secondly and thirdly enumerated in the section of this Act the marginal note whereof is "Application of water revenue" shall in the absence of a reserve fund applicable to the purpose or so far as such reserve fund is not sufficient for the purpose be from time to time made good out of the district fund and to the extent that such fund is insufficient out of the next general district rate to be made by the Council.

Application of money borrowed.

65. All money borrowed by the Council under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Expenses of execution of Act.

66. Any expenses of the execution by the Council of this Act with respect to which no other provision is made may be defrayed by the Council out of the district fund and general district rate.

PART VIII.

MISCELLANEOUS.

Inquiries by Local Government Board.

67.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

As to notices &c.

68.—(1) Where any notice or demand under this Act requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business. A.D. 1912.

69. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs and expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

70. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

71. Nothing contained in this Act shall extend to authorise the Council to take use enter upon or interfere with any land soil or water or any rights in respect thereof belonging to His Majesty in right of the duchy of Cornwall without the consent in writing of some two or more of such of the regular officers of the said duchy or of such other persons as may be duly authorised under the provisions of the Duchy of Cornwall Management Act 1863 section 39 to exercise all or any of the rights powers privileges and authorities by the said Act made exerciseable or otherwise for the time being exerciseable in relation to the said duchy or belonging to the Duke of Cornwall for the time being or without the consent of such Duke testified in writing under the seal of the duchy of Cornwall first had and obtained for that purpose or to take away diminish alter prejudice or affect any property rights profits privileges powers or authorities vested in or enjoyed by His Majesty in right of the duchy of Cornwall or in or by the Duke of Cornwall for the time being. Saving rights of duchy of Cornwall.

[Ch. Ixiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.
Costs of Act.

72. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate of the district or out of the moneys which the Council are authorised to borrow under the powers of this Act.

The SCHEDULE referred to in the foregoing Act. A.D. 1912.

AN AGREEMENT made the fifteenth day of April 1912 between CAPTAIN THOMAS ARCHER JULIAN of Broomhill Harford Ivybridge in the county of Devon (herein-after referred to as "the Owner" and that expression shall include the owner in possession for the time being of the Broomhill Estate) of the one part and THE URBAN DISTRICT COUNCIL OF IVYBRIDGE (herein-after referred to as "the Council") of the other part.

WHEREAS the Council are promoting in the present session of Parliament a Bill intituled "A Bill to define and sanction the existing water undertaking of the urban district council of Ivybridge in the county of Devon to authorise the construction of new works and for other purposes" whereby it is proposed amongst other things to authorise the Council to obtain an additional supply of water from certain streams and particularly from the stream known as the Butter Brook and to construct a reservoir referred to in the Bill as Work No. 1 by means of a dam across the Butter Brook and to lay down certain aqueducts:

And whereas certain supplies of water to the Owner's estate for agricultural domestic and other purposes are derived from the Butter Brook in one case by means of an ancient channel known as Pedlar's Gutter and in another case by means of a cut or leat at a point marked A on the plan herein-after referred to and thereby the Owner and his predecessors in title have been enabled to take and claim the legal right to take water from the Butter Brook for use upon the estate:

And whereas the Owner has presented a petition against the Bill and the parties hereto have since come to an agreement whereby the Owner has agreed to withdraw from further opposition to the Bill upon and subject to the terms and conditions set forth in this agreement:

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

Now it is hereby agreed that in the event of the Council obtaining the powers sought by the Bill the parties hereto hereby mutually agree and contract the one with the other of them as follows:—

1. The Owner will waive all right to take and use water from the Butter Brook by means of the Pedlar's Gutter so that the water in the Butter Brook and the water intercepted by the said gutter above the dam may flow into the reservoir (Work No. 1) proposed to be authorised except his right to take and use for irrigation purposes water by means of the Pedlar's Gutter but only (unless the Council otherwise agree in writing) when the reservoir is overflowing between the 1st day of November and the 31st day of January (both inclusive) in every year subject to such arrangements for regulating the supply and preventing the fouling of the water flowing into the reservoir as may be agreed upon or failing agreement settled by arbitration as hereinafter mentioned. Provided that until the completion of the reservoir (Work No. 1) and the supply of water to the Owner under clause 9 of this agreement the owner shall be entitled to take and use by means of the Pedlar's Gutter during the months of November December and January such quantity of water as he may require for the domestic and agricultural purposes of his house and estate. All works and apparatus necessary for giving effect to this clause shall be provided and executed by and at the expense of the Council but in all things subject to the reasonable approval of the Owner but if his approval shall not be given in any case the difference shall be referred to arbitration.

2. The Council shall not be entitled to purchase and take otherwise than by agreement any lands of the Owner but the Owner shall at the request of the Council grant to the Council the free and uninterrupted right easement liberty licence power and authority at all times and for ever thereafter subject to the restrictions herein-after provided to lay down continue and maintain and from time to time repair restore enlarge renew inspect and examine an aqueduct or line or lines of pipes (being part of the aqueduct (Work No. 2) proposed to be authorised by the Bill) with all necessary apparatus for the conveyance of water in and through the lands of the Owner situate in the parish of Harford and county of Devon and numbered 2 3 4 and 5 on the deposited plans as near as may be along the red line shown on the plan annexed to this agreement and within the limits of deviation shown thereon. All valves shall be placed as near to the fences as practicable and no valve cover shall exceed three feet square.

3. For the purpose aforesaid the Council may dig and excavate a trench of the necessary width and lay down an aqueduct or line

or lines of pipes in the said lands and deposit temporarily the excavated material and pipes and apparatus on each side of the trench together with the right of entry for the Council its agents servants and workmen with or without horses and vehicles from time to time and at all times for ever hereafter upon and over the trench and the adjoining land to the extent of six feet on either side of the centre of the aqueduct or line or lines of pipes for the purpose before stated but so that the total width of the easement shall not exceed twelve feet. A.D. 1912.

4. The Council shall pay to the occupier for the time being of the said lands reasonable compensation for all damage and injury (if any) which may be done by the exercise of the said rights such damage to be settled in case of difference by arbitration as hereinafter mentioned.

5. The turf and soil on the line of trench shall be carefully removed and put aside until restored to its place and on the completion of the aqueduct on the Owner's land the trench shall be filled up and the turf and soil restored as near as practicable to its original state and level so that the said land of the Owner may be used and cultivated as before and the Council shall within a reasonable time after the completion of the aqueduct remove all surplus soil and material from off the Owner's land.

6. All roads drains and fences and other property interfered with by the Council shall be made good by the Council and gates of an agreed pattern (not less than five feet in height) on the lines of fences crossing the trench with proper locks thereto may be placed in lieu of such fence for use of the Council.

7. No fences other than gates shall be fixed by the Council which would sever the lands of the Owner. The surface of the trench may subject to the easement and right of entry be used as at present by the Owner and his tenants but no trees buildings or erections shall be planted or erected on the land the subject of the easement nor shall such land be used in any way likely to injure the works of the Council or prejudicially affect the Council in the exercise of the said easement and rights before referred to. The Owner shall pay the tithes on the land the subject of the easement.

8. During the execution of the works proposed to be authorised by the Bill in the parish of Harford the Council shall take all necessary steps to prevent the fouling or contamination of the water flowing to or through the Owner's estate.

[Ch. lxiv.] *Ivybridge Urban District Water* [2 & 3 GEO. 5.]
Act, 1912.

A.D. 1912.

9. The Council will provide free of charge and in perpetuity a sufficient supply of pure water from their main to Broomhill House for domestic purposes and at such pressure as will cause the water to reach 27 feet 6 inches above the present ground floor level of the house unless prevented by frost unusual drought or other unavoidable cause or accident All fittings shall be provided and maintained by the Owner and shall be subject to the provisions of any byelaw with respect to inspection waste and repair in force generally in the Council's district The water shall be brought by the Council at their expense to a spot to be selected by the Owner within five feet of the house.

10. The Council will also provide and maintain free of charge for the supply of four fields numbered 227 218 111 and 151 on the said plan annexed to this agreement in positions to be agreed upon or failing agreement to be settled by arbitration two cattle drinking troughs and will lay down the necessary pipes and apparatus on the Owner's land and will furnish a constant supply of water to such troughs unless prevented by frost unusual drought or other unavoidable cause or accident.

11. The Council will not without the consent in writing of the Owner use or permit their contractors or their workmen to use Broomhill Lane for any purpose other than such as may be necessary in order to lay down the aqueduct or line of pipes referred to in clause 2 of this agreement.

12. The Council will fix and maintain a fire plug in their main near Broomhill House and the Owner undertakes to pay to the Council an annual sum of five shillings for the convenience and not to use the hydrant except in case of fire.

13. The Council will before commencing any of the works proposed to be authorised by the Bill pay to the Owner the sum of four hundred and fifty pounds as purchase money and compensation for all water easements and other rights of the Owner to which the Council may become entitled under this agreement.

14. Any difference which may from time to time arise between the Owner and the Council with respect to any question under this agreement (including any damage which may be sustained by any occupier on the estate) shall be settled in the manner provided by the Arbitration Act 1889.

15. This agreement is made subject to such alterations as Parliament may think fit to make therein but in the event of either House of

[2 & 3 GEO. 5.] *Ivybridge Urban District Water* [Ch. lxiv.]
Act, 1912.

Parliament making any material alteration therein either party may A.D. 1912.
withdraw from the agreement.

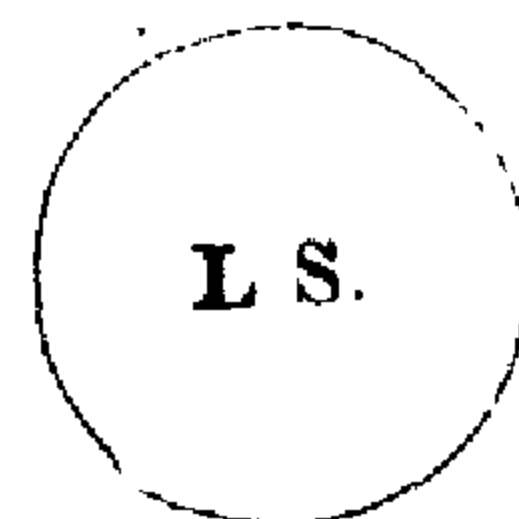
In witness whereof to one part of these presents the said Thomas Archer Julian hath set his hand and to the other part thereof the common seal of the urban district council of Ivybridge is affixed the day and year first before written.

Signed by the said Captain Thomas
Archer Julian in the presence of
SAMUEL J. WARNE
Clerk to Messrs. Woolcombe
& Sons
Solicitors
Plymouth.

THOS. A. JULIAN
Capt.

The common seal of the urban
district council of Ivybridge was
hereto affixed at a meeting of the
Council by James Chamberlain
chairman in the presence of
JOHN ASHFORD
Solicitor
Plymouth.

JAMES CHAMBERLAIN
Chairman.



Printed by EYRE and SPOTTISWOODE, LTD.,
FOR
ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C., and 54, ST. MARY STREET, CARDIFF; or
H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN;
or from the Agencies in the British Colonies and Dependencies,
the United States of America, the Continent of Europe and Abroad of
T. FISHER UNWIN, LONDON, W.C.

